

Leave Policy

Version 1

	Ted's Cameras	Version: 2
Number 7	Leave Policy	Updated June, 2023

Leave Policy

1. Purpose

The Leave Policy outlines the requirements for each category of leave whether paid or unpaid. The purpose of this policy is to ensure fair, equitable and consistent access to leave and to meet all legislative requirements whilst maintaining the operational needs of the business.

2. Scope

This policy applies to employees of Ted's Camera Stores (full time and part time employment classification). Casual employees do not accrue leave entitlements, except for long service leave (LSL) and may be eligible for government funded parental leave in particular circumstances.

3. Responsibility

Human Resources

4. Definitions

Manager: Supervisor, Team Leader, Manager, Subject Matter Expert, staff that supervise front line staff.

NES: National Employment Standards that contains the minimum leave entitlement for employees.

*Award: refer to the General Retail Industry **Award 2020** is a legal document that outlines the minimum pay rates and conditions of employment depending on the industry they work in which will be stated in your employment agreement/contract*

Immediate Family: consistent with National Employment Standards (NES) immediate family is defined as:

A spouse, child, parent, grandparent, grandchild or sibling of the employee.

A 'spouse' includes a former spouse and a de facto spouse. A 'de-facto spouse' is usually defined as a person who lives with the employee as their spouse on a bona fide domestic basis.

A child, parent, grandparent, grandchild, or sibling of the employee's spouse.

Eligible casual employee is a casual who has been engaged by the Company on a regular and systematic basis for a sequence of periods of employment during a period of at least 12 months and who, but for the expected birth or placement of an adopted child, would have a reasonable expectation of continuing engagement by the Company on a regular and systematic basis.

5. Policy

Annual Leave

Ted's Cameras recognises the value of an effective break from the working environment. We are therefore committed to ensuring that employees take annual leave each year.

You are entitled to 4 weeks of annual leave per annum (pro-rata for part-time staff based on their ordinary hours of work) unless your Award or employment contract specifies otherwise.

Employees are encouraged to take annual leave within 12 months of the entitlement being accrued and preferably within the first 6 months past the due date of accrual.

Annual leave can be taken for hours, a single day or for longer periods of time.

Ted's Cameras encourages employees to not accumulate more than 8 weeks of annual leave at any one time. Where annual leave has accumulated beyond this amount, Ted's Camera Stores may direct employees to take leave by giving 4 weeks' written notice. The excess leave accrual and amount of leave to be taken and retained will be determined in accordance with the Award/Employment contract. Leave will then be taken at a mutually convenient time taking into consideration business requirements and personal circumstances.

Planning Leave

Annual leave must be first applied through ADP's Employee Self Service Login (ESS).

Store Team Members must also apply through EmpLive and both be authorised by your Store Manager.

Store Managers are responsible for planning annual leave rosters in their area to always ensure adequate

staff levels, ensuring the operational needs of the business can be met. Holiday rosters should allow each area to operate effectively without the need for relief staff from other areas.

All applications for annual leave by all employees must be received by Human Resources with a minimum 4 weeks' notice.

Applications made giving inadequate notice will not be considered except under exceptional circumstances.

Applications for leave will be processed within two (2) weeks of being received by Human Resources and up to 3 months in advance.

Applications requiring approval for more than three (3) months' notice will be considered only under exceptional circumstances.

Casual staff requiring a non-availability absence of more than one (1) week duration are subject to the same application process as described above, however casuals need to apply for "Leave Without Pay" through ESS in order for their leave to be approved by their manager.

No leave applications or non-availability will be considered during the two (2) weeks prior to Christmas Day until 1 week post New Year's Day.

A communication will be distributed at the start of October each year to communicate any further 'black-out' periods for leave to coincide with the busiest time of year in retail.

Leave applications may also be restricted during other event periods such as Stocktake, special promotions periods or other operational reasons, these are at the discretion of the Store or Line Manager.

Leave applications will be considered on a 'first in' basis except for peak leave periods such as Easter, school holidays or other events, where other considerations may be considered, including operational requirements of the business (such as sales or promotional periods or marketing campaigns which require full staffing), to ensure fair and equitable leave opportunities.

Per the Award if you have accrued 40 days or more annual leave, the Company can direct you to take your annual leave.

'Cashing out' leave entitlements

'Cashing out' entitlements will be considered consistent with the National Employment Standards (NES) and / or Award. An application for 'cashing out' leave will be assessed and approved by Human Resources in conjunction with the CEO, with approval only given in exceptional circumstances.

Sickness during Annual Leave

An employee who is sick or injured while on annual leave may use accumulated sick leave. Requests for leave conversion must be supported by a medical certificate and be authorized by your next level manager and Human Resources. Annual leave that has been processed will be reinstated back into your balance for the number of days hours as sick leave.

Public Holidays

Ted's Cameras observes statutory holidays gazette by State Governments. An employee who works on a public holiday will be paid according to the terms in their employment contract or the Award.

Employees who do not attend work before or immediately after a public holiday and who do not provide medical certificates, or a statutory declaration detailing absence may not be paid for the public holiday or for the days of absence.

Time in Lieu (or TOIL – Time Off in Lieu)

Time in Lieu (TIL) or TOIL applications need to be applied through ESS and will be subject to the same leave application process as described above. Approval must be gained from your manager prior to you working the additional hours for TIL.

TIL will be accrued, on time worked on a public holiday, by a salaried employee.

TIL may be accrued on time worked more than 10 days per fortnight but permission to work more than 10 days in a fortnight must be obtained by both your reporting manager and Human Resources.

In the instance that an application for Annual Leave is approved, an employee's TIL accrual may be used first.

In determining when TIL is taken, TIL needs to be taken within one month of it accruing.

The manager must try and accommodate the preferences of the employees, when there is no agreement; TIL taken at a time determined by Human Resources with regards to rostering.

TIL leave is not able to be "cashed out" except in extraordinary circumstances

Long Service Leave

All employee members are entitled to Long Service Leave depending on their state legislation and provisions.

Applications for Long Service Leave need to be applied through ESS and will be subject to the same application process as described above.

Long service leave cannot be 'cashed out' – it is in breach of the legislation.

Personal Leave

Ted's Cameras acknowledges that from time-to-time employees experience sickness and injury and require personal leave to rest and recover or care for members of their immediate family or household.

Personal leave forms an important part in Ted's Cameras's Work, Health and Safety obligations and employees are encouraged to use this form of leave where there is a legitimate requirement.

Personal leave will accrue at the rate of 10 days per annum and is cumulative. Per Award conditions paid personal leave is available to full and part-time (on a pro-rata basis) employees and unpaid sick/carers leave for casual staff.

Personal leave incorporates:

Sick Leave

Paid Carers Leave

Sick Leave

Your entitlement to sick leave is conditional upon you, as soon as reasonably practicable:

Notifying your manager of the fact that you require (or required) leave because of a personal illness or injury.

Store staff should let the Store Manager know in advance of their shift, of their absence from work, so that managers can cover the shift (if required) and notify Human Resources. Head Office staff must notify their direct Manager.

Providing Ted's Cameras with a medical certificate and any other medical evidence in relation to the sick leave as may be required (or, if it is not reasonably practicable for you to provide a medical certificate, a statutory declaration stating that you were, are, or will be unfit for work during the period because of personal illness or injury).

A medical certificate or statutory declaration will be required if the leave will be two (2) days or more and/or if the sick leave happens to fall before or after any of the following:

Rostered Day Off (RDO)

Weekend day: Saturday and Sunday

Public Holiday

Annual Leave

TIL/ TOIL

Long Service Leave

Personal Leave (including carers leave)

Bereavement/ Compassionate Leave

Leave without Pay

If the period during which an employee takes paid personal/carer's leave includes a day or part-day that is a public holiday, the employee is not on paid personal/carer's leave on that public holiday.

HR/Payroll can request medical certificates for as little as 1 day or less off work if you take sick leave on any of the above, except when it is your Rostered Day Off (RDO).

Please ensure all originals/copies of medical certificates or other documentation for HR/Payroll are sent scanned to hr@teds.com.au

If HR/Payroll does not receive your medical certificate by Monday of the pay week, you will be paid "Leave without Pay" for those days you were away. The transaction will be allocated against your personal leave in a following pay run (once appropriate documentation is received).

Untaken Sick Leave

Untaken sick leave will accumulate from year to year. You will not be entitled to receive any payment for untaken sick leave accruals upon termination of employment or at any other time.

Advanced Sick Leave

Paid sick leave cannot be claimed in advance of future entitlements

Workers Compensation

When an employee is entitled to receive workers' compensation payments for a period of absence, they are not entitled to paid sick leave for the same period of absence.

Annual Leave Entitlement

On a case-by-case basis, your annual leave entitlement may be used for sick leave purposes once all paid sick leave has been exhausted but a medical certificate needs to be provided. When an employee has exhausted their paid personal leave entitlements employees may also take unpaid sick leave,

Unpaid Sick Leave

Unpaid sick leave greater than three (3) months will not count as service for the purposes of annual leave, long service leave and any other personal leave accruals.

Carers Leave

You are entitled to Carer's Leave when you are required to provide care and support for an ill or injured immediate family member or household member or because of an emergency affecting the immediate family or household member.

If employees need to provide care for an immediate family member (refer definitions for what constitutes an immediate family member under the National Employment Standards or a member of their household who requires care or support due to a personal illness, personal injury or an unexpected emergency affecting the family member.

The Company may request you to provide a carer's certificate or statutory declaration detailing the requirement for the care of your family or household member.

The employee will need to advise the Store Manager/Manager immediately so they can organise another team member to cover the shift (if required).

The employee will also need to email HR/Payroll the date that they are taking carer's leave and who they are caring for.

A certificate of carer's leave from a medical professional will be required if the leave is more than 2 days or if the carer's day falls before or after any of the following:

- * Rostered Day Off (RDO)
- * Weekend day: Saturday and Sunday
- * Public Holiday
- * Annual Leave
- * TIL / TOIL
- * Long Service Leave
- * Personal Leave (including carers' leave)
- * Bereavement / Compassionate Leave
- * Leave without Pay

Employee's carer's leave will be deducted from the employee's sick leave entitlement.

Please ensure all originals/copies of medical certificates or other documentation for HR/Payroll are sent scanned to hr@teds.com.au

If HR/Payroll does not receive your carer's leave certificates by Monday of the pay week, you will be paid "Leave without Pay" for those days you were away. The transaction will be allocated against your personal leave in a following pay run (once appropriate documentation is received).

Unpaid Carers Leave

If your entitlement to paid personal/carer's leave is exhausted, you are entitled to up to two (2) days unpaid carers leave for each occasion that you are required to provide care and support for an ill or injured immediate family member or household member or because of an unexpected emergency affecting the immediate family or household member.

The notice and evidentiary requirements for paid carer's leave also apply to unpaid carer's leave.

Bereavement/Compassionate Leave

An employee is entitled to take 2 days of Bereavement/Compassionate leave for each occasion (a permissible occasion) when a member of the employee's immediate family; or a member of the employee's household has an illness or injury that poses a serious threat to their life, or upon death of a member of your immediate family or household.

This leave can be taken consecutively or in single days or in distinctly separate period.

It's essential you provide notice to your direct Manager of taking the leave so they can cover your shift.

Please email your manager and HR/Payroll of the dates you want to take bereavement/compassionate leave and details of the immediate family member that passed away.

The Company may require you to provide reasonable evidence of the illness, injury or death of the member of your immediate family or household.

Parental Leave

Unpaid Parental leave is provided to assist an employee or an employee's partner when having a baby or adopting a child and includes maternity, paternity and adoption leave.

Unpaid Parental leave is available to permanent employees who have had 12 months' continuous service with Ted's Cameras and to 'eligible casual employees'. (Refer definitions section for definition of 'eligible casual employees').

As the primary carer, Ted's Cameras provides up to a total of 12 months or 52 weeks unpaid leave that may not exceed 1 year after the birth of a child. Employees can apply for an additional 52 weeks of unpaid leave provided they are the primary care giver; however approval of this extended leave is subject to business operational needs. This request to needs to be put in writing and at least 10 weeks' notice provided to Human Resources.

Parental leave can only be taken by an employee who is to act as the primary caregiver of the child. The exceptions are the week following the birth of a child and the 3 weeks following the adoption of a child, during which time both parents can take parental leave simultaneously.

The period of parental leave does not count as service for the accrual of entitlements such as sick leave, annual leave and long service leave. However, continuity of service is preserved and the period of parental leave will count for the purposes of calculating service for any future entitlements to parental leave and service-based entitlements such as redundancy payments.

An employee does not accumulate any type of paid leave while they're on unpaid parental leave. This includes paid leave such as annual leave or sick leave.

Paid leave also does not accumulate when an employee is getting the Australian Government Paid Parental Leave Scheme payments if the person is taking unpaid leave from their employer at this time.

Paid leave may accumulate when an employee is on employer-funded paid parental leave.

The conditions relating to each form of parental leave are detailed below.

Applying for Unpaid Parental Leave (Primary Carers):

Before an employee can take unpaid parental leave at Ted's Camera Stores, you will need to give your Store Manager and HR/Payroll the following evidence and notice:

- A medical certificate or statutory declaration of the expected date of birth or the date of placement of an adopted child or evidence to support preadoption leave
- If an employee doesn't provide any evidence, they won't be entitled to the leave.

• 10 weeks' notice before starting leave

An employee has to give notice to their Manager and HR/Payroll at least 10 weeks before starting their unpaid parental leave. This notice needs to be in writing, and say how much leave they want to take, including the starting and finishing dates.

If an employee can't give 10 weeks' notice, they need to provide as much notice as possible.

• 4 weeks' notice before starting leave

An employee has to confirm their parental leave dates with their Manager and HR/Payroll at least 4 weeks in writing before they are due to start their leave. If there have been any changes to the dates the employee should tell their employer as soon as possible.

If an employee can't provide 4 weeks' notice, they need to provide as much notice as possible.

Pregnant Employee Entitlements

1. Sick Leave:

Full-time or Part-time Employees who are pregnant at Ted's Cameras still get their ordinary sick leave entitlements while they're at work.

Pregnancy is not an illness or injury. If a pregnant employee experiences a pregnancy-related illness or injury, they can take sick leave, notice and evidence will be required as outlined under Sick Leave section of this policy.

2. Compassionate Leave:

Pregnant employees who are full-time or part-time can be paid compassionate leave at their base payrate for the ordinary hours if they have or their current spouse or defacto partner has a miscarriage or is stillborn. Evidence and notice is also required

3. Special Maternity Leave:

A pregnant employee who is eligible for unpaid parental leave can take unpaid special maternity leave if:

- o they have a pregnancy-related illness
- o they have a miscarriage.

If an employee takes special maternity leave because of a pregnancy-related illness, the leave will end when the pregnancy or illness ends, whichever is earlier.

If the employee takes leave because of a miscarriage or termination, it can continue until they're fit for work.

While the employee won't be entitled to take special maternity leave if the baby is stillborn, they may still be entitled to take unpaid parental leave or compassionate leave.

Special maternity leave doesn't reduce the amount of unpaid parental leave that an employee can take.

An employee will need to notify their Manager and Human Resources as soon as possible that they're taking special maternity leave. This can be after the leave has started. They will also need to advise how long they expect to be on leave. Human Resources can ask the employee for evidence and can request a medical certificate.

4. 6 Weeks before Birth:

Employees who are pregnant and want to work during the 6 weeks before birth at Ted's Cameras, they will need to provide HR a medical certificate within 7 days that states:

- the employee is fit for work
- if the employee is fit for work, whether it is inadvisable for the employee to continue in their present position because of:
 - illness or risks arising out of the employee's pregnancy, or
 - hazards connected with the position.

HR can require the employee to take a period of unpaid parental leave as soon as possible if the employee:

- fails to provide the requested medical certificate within 7 days of the request, or
- provides a certificate within 7 days that states they are not fit for work at all.

The employee's unpaid parental leave will then start when they are directed to take unpaid parental leave and will count as part of the employee's total unpaid parental leave entitlement. The rules about when the leave must start and notice requirements don't apply.

5. Safe Jobs:

At Ted's Cameras, all pregnant employees, including casuals, are entitled to move to a safe job if it isn't safe for them to do their usual job because of their pregnancy. This includes employees that aren't eligible for unpaid parental leave.

An employee who moves to a safe job will still get the same pay rate and other entitlements that they got in their usual job for the hours they work in the safe job. Their hours will stay the same, unless the employer and employee agree on different ordinary hours. The employee may get different loadings, penalty rates or allowances for the new hours worked. The employee will stay until it's safe to go back to their normal job, or until they give birth.

The employee will need to give their manager and HR evidence in writing that:

- they can work but can't do their normal job (including why the normal job isn't safe), and
- how long they shouldn't work in their normal job.
- This will need to be documented in a letter from their doctor

When no safe job is available

If there is no safe job available, the employee can take no safe job leave. If the employee is entitled to unpaid parental leave, no safe job leave is paid.

For a full-time or part-time employee, no safe job leave is paid at the base rate of pay for ordinary hours of work.

For a casual, no safe job leave is paid at the base rate of pay (not including the casual loading) for the average number of hours they would have worked in the period they're on leave.

Employees who aren't entitled to unpaid parental leave can take unpaid no safe job leave.

Australian Government Parental Leave Pay Scheme:

Parental Leave Payments

Whilst on unpaid parental leave with Ted's Camera Stores, eligible employee can receive paid parental leave from the Australian Government Parental Leave Payment Scheme. Those eligible employees who apply as the primary carer of a newborn or newly adopted child can receive the current entitlement of 20 weeks' paid parental leave pay. This means partnered couples will be able to claim up to 20 weeks' paid parental leave between them. Parents who are single at the time of their claim may also be able to access the full 20 weeks. This is paid at the National Minimum Wage and certain eligibility tests need to be met.

In addition, all employees at Ted's Cameras can also take their paid leave entitlements whilst on unpaid parental leave, such as annual leave, long service leave, Time in lieu, etc.

In most cases, the Australian Government makes paid parental leave payments to the employer, who then pays the employee.

These changes affect employees whose baby is born or placed in their care on or after 1 July 2023.

Dad & Partner Pay

Employees who are not the primary carer at Ted's Cameras can also apply for Dad and Partner Pay under the Australian Government Parental Leave Payment Scheme. If eligible, you will receive up to two weeks paid leave while you care for your new newborn or newly adopted child before 1 July 2023.

Employees who wish to apply for Dad and Partner Pay, will need to provide four weeks' notice and submit a leave application for "Leave without Pay" in ADP's ESS. If an employee can't provide 4 weeks' notice, they need to provide as much notice as soon as possible to their Manager and HR/Payroll.

Adoption Leave

Adoption leave is unpaid leave available to employees who are in the process of adopting, or have recently adopted, a child under the age of 5 years.

The leave is available to permanent employees who have served continuously for a minimum of 12 months prior to commencing leave or to eligible casual employees.

The types of adoption leave available are:

Short adoption leave: an unbroken period of 3 weeks at the time of the placement of the child which can be taken concurrently with the employee's partner.

Extended adoption leave: an unbroken period of up to 52 weeks (less any other authorised leave taken by the employee and any adoption leave taken by the employee's partner) to care for the child.

Pre-adoption leave

Employees who are taking unpaid parental leave to care for an adopted child are also entitled to 2 days unpaid pre-adoption leave to attend relevant interviews or examinations.

This leave can't be used if HR/Management tells an employee to take another type of leave (for example, paid annual leave).

Leave Without Pay

Ted's Cameras recognises that employees may require time away from work for specific reasons that are not covered by other forms of leave. These reasons may include volunteer aid work abroad, travel to other countries, family requirements, extended study leave or career break.

Ted's Cameras will consider leave without pay on a case-by-case basis, taking into consideration the purpose for the leave request, the amount of leave requested, current and future business requirements, length of service and any other relevant factors. There are no guarantees that applications for leave without pay will be granted.

Employees who have had any disciplinary action taken against them in the previous 3 months prior to the application, and employees who have served less than 12 months continuous service will not normally be considered for leave without pay.

Employees may not utilize leave without pay when other leave entitlements are available.

Approved unpaid leave may not break the continuity of service with Ted's Cameras, however the accumulation of leave and service entitlements may be affected and should be discussed with Human Resources before leave is taken.

Leave entitlements will not accrue during periods of leave without pay but accrued leave balances will be preserved.

Family & Domestic Violence

Family and domestic violence means violent, threatening, or other abusive behaviour by a family member of an employee that seeks to coerce or control the employee and that causes them harm or to be fearful. family member means:

a spouse, de facto partner, child, parent, grandparent, grandchild, or sibling of the employee; or

a child, parent, grandparent, grandchild or sibling of a spouse or de facto partner of the employee; or

a person related to the employee according to Aboriginal or Torres Strait Islander kinship

A reference to a spouse or de facto partner in the definition of family member includes a former spouse or de facto partner.

An employee is entitled to 10 days' days of paid family and domestic violence leave each year, to deal with family and domestic violence, as follows:

the leave is available in full at the start of each 12-month period of the employee's employment; and

the leaves does not accumulate from year to year; and

For full-time or part-time employees with a paid entitlement, family and domestic violence leave must be paid at the employee's full rate of pay for the hours they would have worked had they not taken leave.

Casual employees with a paid entitlement must be paid at their full rate of pay for the hours they were rostered to work in the period they took leave.

What are the notice and evidence requirements?

Employees must let Human Resources know as soon as possible if they need to take family and domestic violence leave. Sometimes this will be after the leave has started.

An employer can ask for evidence to show that the employee needs to do something to deal with family and domestic violence and it's not practical to do it outside their work hours.

Types of evidence an employee can provide includes:

- a statutory declaration
- family violence support service documents
- documents issued by a police service, or
- documents issued by a court.

Employers must take reasonable steps to keep information about notice or evidence for family and domestic violence leave confidential.

Employers can only use this information to satisfy themselves that the employee is entitled to family and domestic violence leave, unless the employer is using or dealing with the information where:

- the employee consents
- it's required by law, or
- it's necessary to protect the life, health or safety of the employee or another person.

Taking unpaid leave

An employee may take unpaid leave to deal with family and domestic violence if the employee:

is experiencing family and domestic violence; and

needs to do something to deal with the impact of the family and domestic violence and it is impractical for the employee to do that thing outside their ordinary hours of work.

Note: The reasons for which an employee may take leave include planning for their safety or the safety of a family member (including relocation), attending urgent court hearings, or accessing police services.

Community Service Leave

Employees, including casual employees, can take community service leave for certain activities such as:

Voluntary Emergency Management activities

Jury Duty (including attendance for jury selection).

Except for jury duty, community service leave is unpaid.

Please refer to National Employment Standards for further detail on Community Service Leave.

Entitlement to leave of this nature will be determined on a case-by-case basis in line with legislation and/or Award. Further details can be obtained from Human Resources.

Other Leave of Absence

Other forms of leave may be available. These include:

Additional Bereavement leave

Defense Service Leave

Entitlement to leave of this nature will be determined on a case-by-case basis in line with legislation and/or Award. Further details can be obtained from Human Resources.

Complaints Procedure

If you are not happy with a leave decision please refer your issue to your manager, your manager's manager, or Human Resources.

6. Related documents

General Retail Industry Award 2020

Work Health & Safety Policy

Employment Contract

7. Version control

Version	Description of Changes	Date Issued	Author

1	Document created and approved	17 Feb 2016	KH
	12 month review	17 Feb 2017	
2	Document reviewed and updated	14 Feb 2019	SD, National HR Manager
3	Review & Updated	June 2023	SM, HR Manager

Further assistance

Further information, advice or assistance please contact Human Resources on phone: (03) 8779 5500 or email: hr@teds.com.au